

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY CB COMMUNITY BUSINESS AND COUNTY A-2 AGRICULTURAL TO CB COMMUNITY BUSINESS, AG AGRICULTURAL, AND LIGHT INDUSTRIAL FOR LAND LOCATED BETWEEN CLEAR CREEK PARKWAY AND SOUTH GREELEY HIGHWAY, SOUTH OF COLLEGE DRIVE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on October 3, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as:

a parcel of land being situated in a portion of north half of Section 23, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County Wyoming and being more particularly described as follows:

commencing at the section corner common to Sections 13, 14, 23 and 24 Township 13 North, Range 67 West; thence S87°55'11”W a distance of 1073.99 feet to a point of intersection of the westerly right of way of Interstate 25 and the southerly right of way of Quartz Road and the true point of beginning; thence along said southerly right of way of Quartz Drive, N89°56'08”W a distance of 959.41 feet to a point of intersection of said southerly right of way and the easterly right of way of Clear Creek Parkway and the beginning of a curve to the right; said curve having a radius of 1860.65 feet, a chord bearing of S15°48'31”W, a chord distance of 964.75 feet and a central angle of 30°03'05”, thence along the arc of said curve and said easterly right of way of Clear Creek Parkway a distance of 975.90 feet; thence continuing along said easterly right of way the following courses and distances: S30°50'14”W a distance of 1066.61 feet to the beginning of a curve to the right; said curve having a radius of 10063.50 feet, a chord bearing of S31°05'06”W, a chord distance of 88.41 feet and a central angle of 00°30'12”, thence along the arc of said curve a distance of 88.41 feet; thence leaving said easterly right of way S58°39'41”E a distance of 836.84 feet to a point on said westerly right of way of Interstate 25; thence along said westerly right of way N24°50'55E a distance of 958.93 feet; thence S68°08'37”E a distance

of 140.07 feet; thence N21°57'05"E a distance of 1241.12 feet to the beginning of a non-tangent curve to the left; said curve having a radius of 10900.45 feet, a chord bearing of N14°58'40"E, a chord distance of 398.35 and a central angle of 02°05'38", thence along the arc of said curve a distance of 398.37 feet to the point of beginning.

Said parcel of land contains 44.93 acres

is hereby changed to CB Community Business;

the zoning classification of the real property described as:

a parcel of land situated in portions of Sections 14 and 23, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County, Wyoming, being more particularly described as follows:

beginning at the northeast corner of said Section 23 being monumented by a found aluminum cap; thence along the east line of said section 23 S00°51'24"W a distance of 682.03 feet to a point on the westerly right-of-way of the BNSF railroad; thence along said railroad right-of-way S31°56'25"W a distance of 1051.00 feet to the beginning of a curve to the right; said curve having a radius of 5629.65 feet, a chord bearing of S34°06'39"W, a chord distance of 426.40 feet, and a central angle of 4°20'26", thence along the arc of said curve a distance of 426.50 feet; thence leaving said railroad right-of-way N68°02'18"W a distance of 270.29 feet to a point on the westerly right-of-way of Interstate 25; thence along said interstate right-of-way N05°30'28"W a distance of 231.46 feet to a point; thence continuing along said interstate right of way N11°30'35"E a distance of 1628.98 feet to a point on the north line of said Section 23; thence continuing along said interstate right-of-way N11°11'32"E a distance of 511.19 feet to the beginning of a curve to the left; said curve having a radius of 11614.89 feet, a chord bearing of N04°41'45"E, a chord distance of 2388.59 feet, and a central angle of 11°48'13", thence along the arc of said curve a distance of 2392.82 feet to a point on said interstate right-of-way being monumented by a found aluminum cap; thence leaving said interstate right-of-way N89°46'05"W a distance of 467.01 feet to a point on the east line of said Section 14 being monumented by a found aluminum cap; thence along the east line of said Section 14 S00°07'37"W a distance of 251.68 feet to the east quarter corner of said Section 14; thence continuing along the east line of said Section 14 S00°10'29"W a distance of 2633.11 feet to the point of beginning.

Said parcel of land contains 66.39 acres

is hereby changed to CB Community Business;

the zoning classification of the real property described as:

a parcel of land situated in a portion of Section 23, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County, Wyoming, being more particularly described as follows:

beginning at the southeast corner of said Section 23 being monumented by a found aluminum cap; thence along the south line of said Section 23 N89°03'09"W a distance of 2605.96 feet to the south quarter corner of said Section 23; thence continuing along the south line of said Section 23 N89°44'50"W a distance of 629.05 feet to a point on the easterly right-of-way of the BNSF railroad; thence along said easterly railroad right of way N39°09'07"E a distance of 3876.40 feet to the beginning of a curve to the left; said curve

having a radius of 5829.65 feet, a chord bearing of N35° 32'46"E, a chord distance of 733.27 feet, and a central angle of 7°12'42", thence along the arc of said curve a distance of 733.75 feet to a point; thence continuing along said easterly railroad right-of-way N31°56'25"E a distance of 719.25 feet to a point on the east line of said section 23; thence along the east line of said Section 23 S00°51'24"W a distance of 1583.06 feet to the east quarter corner of said Section 23 being monumented by a found iron rod; thence continuing along the east line of said Section 23, S00°05'11"E a distance of 2676.02 feet more or less to the point of beginning.

Said parcel of land contains 150.53 acres.

is hereby changed to AG Agricultural;

and the zoning classification of the real property described as:

a parcel of land containing the south ½ of Section 24, Township 13 North, Range 67 West; and all of Section 19, Township 13 North, Range 66 West of the 6th Principal Meridian, Laramie County, Wyoming.

Said parcel contains 973.03 acres.

is hereby changed to LI Light Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and upon the official filing of the affiliated High Plains Business Park final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____

RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of the South Half of Section 27, Township 13 North, Range 67 West of the 6th Principal Meridian to City CB Community Business, City LI Light Industrial, and City AG Agricultural as shown in the attached zone change map with conditions, noting that (with conditions) the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from various county zones to various City zones, concurrent with an annexation. The assignment of a City zone is necessary to establish the regulation of annexed property. The proposal is to zone 111 acres CB Community Business, 973 acres LI Light Industrial, and 151 acres AG Agricultural.

The areas proposed to be zoned CB and AG are analogous to the current County zones. The area proposed to be zoned LI is associated with a specific project.

The land is currently largely vacant (although some limited residential and agricultural operations – such as grazing – may be operating on the site). The impetus behind the annexation and zone change is an anticipated light industrial use.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Employment, Mixed-use Residential, and Urban Residential	County CB, County A-2	Vacant (likely agriculture)
North	Mixed-use Employment, Community Business, Mixed-use Residential, and Urban Residential	LI Light Industrial, CB Community Business, County CB, County PUD, County A-2	Vacant (likely agriculture), Industrial, Commercial
South	Mixed-use Employment, Mixed-use Residential, Urban Residential, and Urban Transition Residential	County A-2, County AR	Vacant (likely agriculture), Rural Residential
East	Mixed-use Residential	County A-2, County MR, County CB	Mobile Home Park
West	Mixed-use Employment	LI, County CB	Vacant (possible agriculture), Industrial

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. The property is within the Urban Service Boundary. Development will require infrastructure improvements and investment.

Policies in PlanCheyenne encourage industrial development near regional transportation routes and on the edges of the community (where they can be buffered from the residential and customer-based commercial uses).

While the current future land use map would not support LI zoning, the Comprehensive plan is meant to be a guide and is encouraged to be responsive to market demands. It was originally thought that this area would be optimal for largely residential development, but there had been no true development proposals for the land. The land is within the urban service boundary and would be expected to develop within City limits.

A concurrent PlanCheyenne amendment proposes changing the property to Mixed-use Employment for future light industrial development. The proposed zoning establishes LI for a portion of the area for immediate development while zoning the remainder as AG as an interim holding zone, and bringing forward the CB zone from the County areas currently zoned County CB.

The proposed zoning allows for establishment of a new business park with regional connectivity to I-25 and U.S. Highway 85.

The proposed zone change **complies** with review criterion 1, with conditions.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

A majority of the surrounding property is largely vacant with limited use. The future land use map and comprehensive plan speculated that this area would develop with largely residential uses, but considered a mix of commercial uses possible. These speculations did not have any true development proposals behind them. The large acreage of the site would allow for buffers to adjacent property and surrounding areas could still develop with largely residential development patterns. The proposed zoning of LI only allows limited industrial uses, which can be compatible with nearby residential uses.

The proposed zone change **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The property currently has a County zone, but in order to develop within the City, a City zone is required. The proposed areas to be zoned CB and AG are analogous to the current County zones. The proposed LI zone district requires screening and buffering along street rights-of-ways and district boundaries. Typically, Cheyenne LEADS business parks attract large tenants and develop in accordance with applicable landscaping and screening standards.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Block sizes are not applicable in areas designated mixed-use employment or industrial. Access may be limited based on street classification and proximity to the interstate, but specific access would be reviewed with plat(s) or site plan(s). Infrastructure (streets and utilities) exist in the region, but will need to be extended to effectively service the subject property. A transportation network plan submitted with the project demonstrates the ability for the project to meet over-arching transportation goals.

The proposed zone change **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB zone is intended for regional-serving commercial uses. Large acreage to allow larger businesses is appropriate. The CB zone includes design standards. The area proposed to be zoned CB by this zone change is close to regional transportation routes and development should be able to meet all design standards.

The AG zone is intended to keep land in a natural state, but is also appropriate as a holding zone until more specific development proposals are made. This zone district has no design standards. The area proposed to be zoned AG is appropriate as a holding zone.

The LI district is intended for controlled manufacturing or intense employment uses that may have accessory commercial, service or office uses, but which cannot readily fit into other general business or mixed-use areas due to the nature or intensity of operations. The uses and building and site designs in this district should not produce impacts beyond the property lines. The LI zone should be in areas which have access to regional infrastructure and space to provide buffers to neighboring non-industrial uses. There are no design standards in the LI zone. The area proposed to be zoned LI meets these expectations.

The proposed zone change **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific development proposed in concert with this rezoning is a light industrial facility on the area to be zoned LI. Should the proposed development not be executed after approval, there are also a number of industrial and commercial uses which would be eligible to be established at this location. The sheer size of the proposal allows for a wide variety of development options.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Reviewing agencies noted that the concurrent future land use map amendment needs to be approved to recommend approval of the zone change. No other recommendations regarding the proposed zone change were provided.

The proposed zone change **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

The area proposed to be zoned LI does abut existing residential areas to the east and southeast. However, there is anticipated to be roads between the subject property and the residential areas, and the size of the property allows for buffering between the LI use of the land and these existing residential areas. A Greenway is also located here on the future Greenway Map, and may help provide a buffer. City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, reviewing agencies noted that the concurrent future land use map amendment needs to be approved to recommend approval of the zone change.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The PUD zone is appropriate based on the comprehensive plan (as long as the concurrent future land use map amendment is approved), surrounding zoning, and surrounding development patterns.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications (**Staff Recommendation**).
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

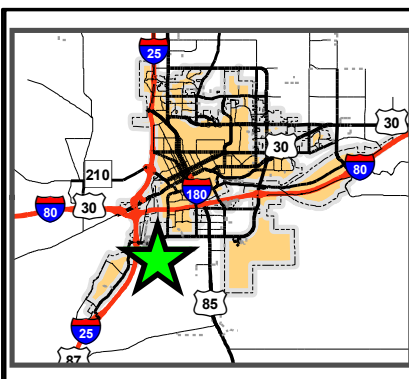
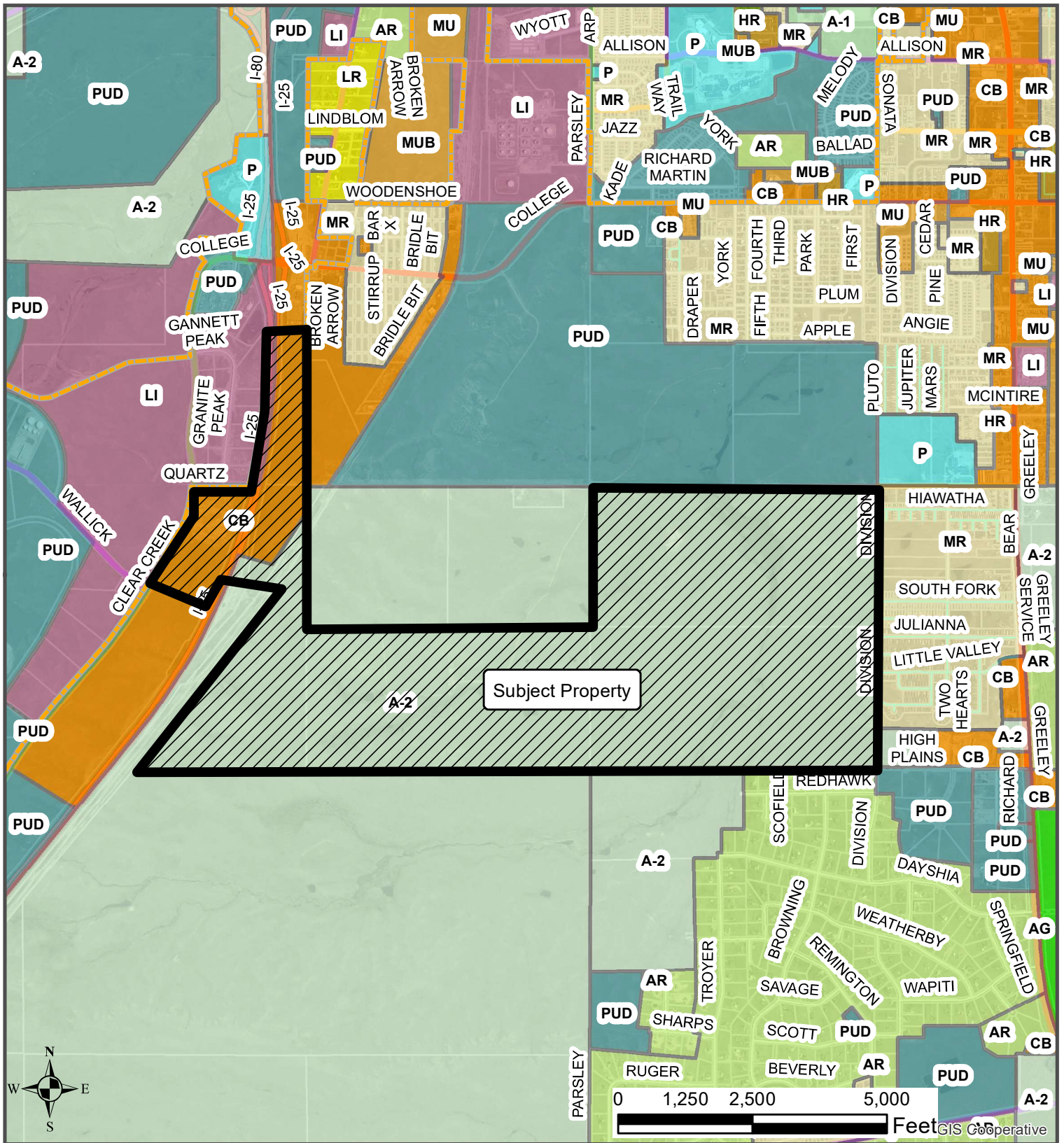
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County CB and County A-2 to City CB, City AG, and City LI, with the condition that the concurrent future land use map amendment be approved.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

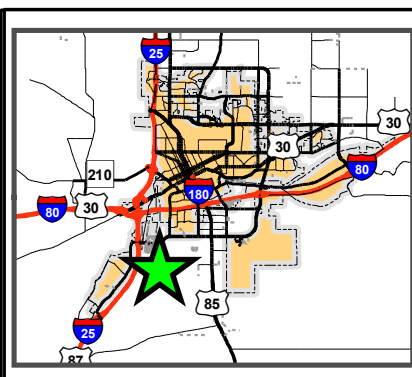
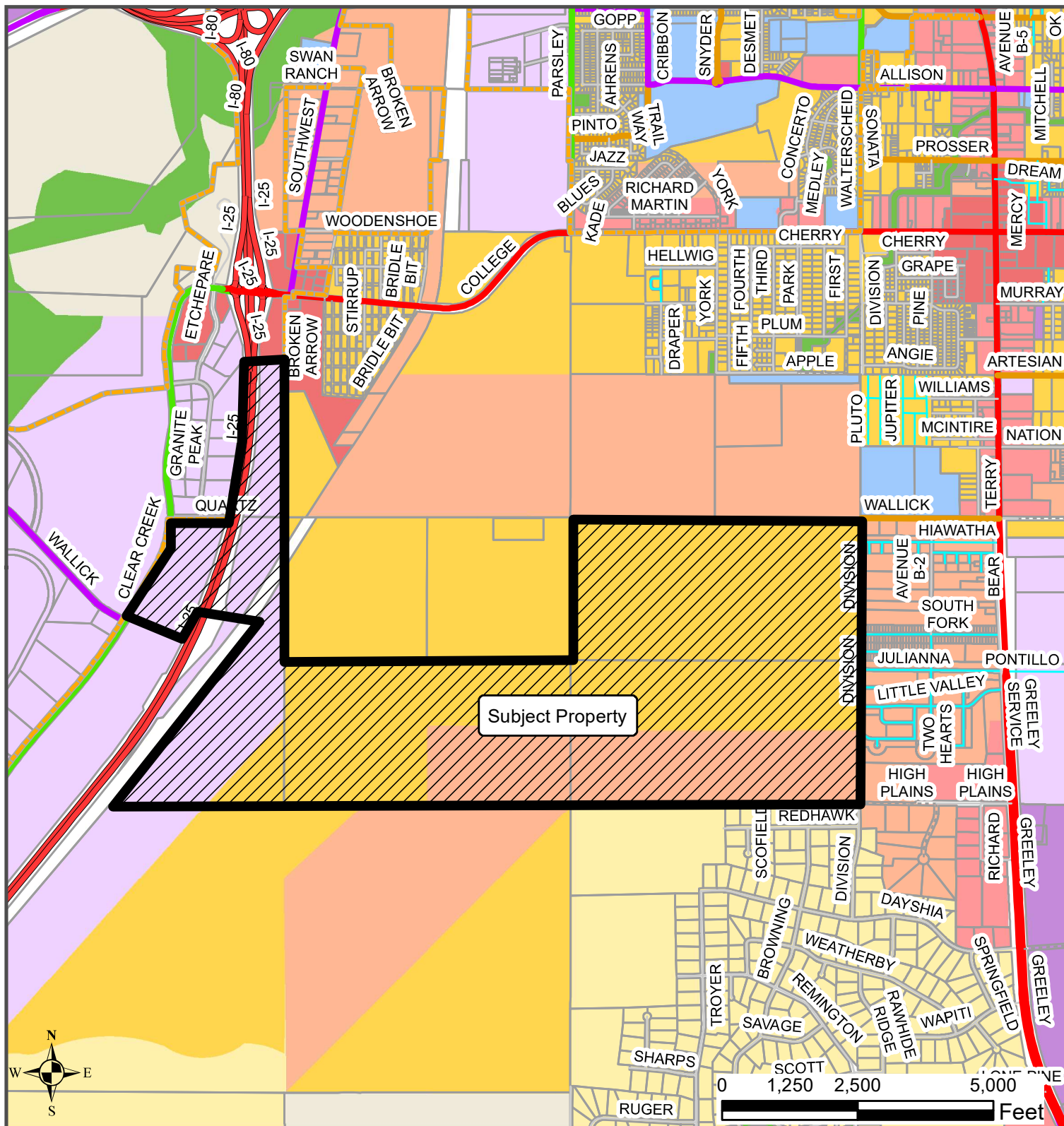


Attachment 1: Zoning Map UDC-22-00310 UDC-22-00313

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2:
Land Use Map
UDC-22-00310
UDC-22-00313

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

-
- Legend:
- Nov19_CityLimits
 - Interstate
 - Principal Arterial
 - Minor Arterial
 - Major Collector
 - Minor Collector
 - Local
 - Private
 - Platted not built
 - Ownership
 - Agricultural/Rural
 - Rural Residential
 - Urban Transition Residential
 - Urban Residential
 - Mixed-Use Residential
 - Mixed-Use Commercial
 - Mixed-Use Employment
 - Industrial
 - Central Business District
 - Community Business
 - Public and Quasi-Public
 - Military/Federal
 - Open Space and Parks

Planning and Development: Zoning Map Amendment Application

Submission date: **17 August 2022, 4:59PM**

Receipt number: **38**

Related form version: **10**

General Information

Applicant Name: **Cheyenne Leads**

Applicant Address: **121 W. 15th St. Suite 304**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **3076386000**

Applicant Email: **rachellez@cheyenneleads.org**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Various**

Owner Address:	Various
Owner City:	Various
Owner State:	Various
Owner Zip Code:	Various
Owner Phone:	Various
Owner Email:	Various
Who is the primary contact regarding this application?	Representative
Letter of Authorization	hbp sw cc loa_001.pdf msaraloe.pdf shorth loa.pdf wgsaraloe.pdf
Project Location (Street Address or General Location):	South of Quartz Drive and then east to Division
Assessor's Parcel ID number(s)	R0066009, R0066007, R0056382, R0057041, R0057043
Total Project Area	1234.88
Existing Zoning	CB - Community Business Other: A-2
Requested Zoning	AG - Agricultural CB - Community Business LI - Light Industrial

Application-Specific Questions

Written Statement	Annexation, Platting and zoning to create High Plains Business Park
Zoning Map	4626 ZONE CHANGE 8.17.22.pdf 4626 ADJACENT OWNERSHIP.pdf
Notification Letter	High Plains Business Park Zone Change Notification_.docx zone change mailing list.xlsx
Supporting Documents / Information	4626 FINAL PLAT (2022-08-17).pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Acknowledgement of this review criteria

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com

